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No.

12 - Nicole Ramos, et al. v. Dennis Frank Hemenway

Defendant

Dennis Frank Hemenway's Four Motions to Compel Plaintiffs' Further Responses

Defendant

Dennis Frank Hemenway moves to compel Plaintiffs Nicole Ramos and Iris Hernandez to provide further responses to form interrogatories and requests for production.

Timeliness

"Unless notice of

[a motion to compel further responses] is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the [requesting] party and the responding party have agreed in writing, the [requesting] party waives any right to compel a further response." (CCP §§ 2030.300(c) [interrogatories]; 2031.310(c) [requests for production].) The 45-day deadline "renders the court without authority to rule on [late] motions to compel other than to deny them." (Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1410.)

Plaintiffs contend Defendant's motions

are untimely because their responses consisted only of objections that did not require verification. Therefore, Plaintiffs argue, Defendant's deadline to file the instant motions started when Plaintiffs served their objections on July 2, 2025.

In

reply, Defendant argues that the motions are timely because Plaintiffs' responses were not objection-only, but instead included some substantive responses. Therefore, under *Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 136, "the responses here had to be verified because they were a combination of responses and objections. And because they had to be verified, the clock did not begin running until they were."

The Court has reviewed Defendant's separate statements and finds that Plaintiffs' responses to form interrogatories were hybrid responses: they contained one substantive response to request no. 1.1 and objections to all other requests. As such, these hybrid responses required verification. Because no verification was provided, the clock never ran. The motions as to form interrogatories are timely.

However, Plaintiffs' responses to request for production were objection-only. Defendant argues that Plaintiffs' responses are substantive because "[e]ach response states that documents are not in 'Responding Party's possession, custody, or control.' " (Reply, at p. 2.) This misrepresents Plaintiffs' responses. Plaintiffs never provided a straightforward inability to comply statement. Instead, they responded: "The Request is overbroad and unduly burdensome to the extent that it seeks documents not in Responding Party's possession, custody, or control." (See RFP Separate Statement at p. 2.) This is an objection, not a factual response as Defendant claims.

To the Court's knowledge, the California Court of Appeal has not yet addressed whether responses consisting entirely of unverified objections trigger the 45-day clock. (See *Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 136 ["We can leave for another day the possibility of an 'absurd result,' as the trial court put it, if there is no time limit on a motion to compel involving objections. Here, the response was mixed facts and objections. That is all we have before us"]; *id.*, at p. 136, fn. 5 ["But that other day will doubtless come, and we're more likely to get it right if the Legislature addresses it before we have to."].)

The Court agrees with Judges Weil and Brown that the 45-day clock runs from the date of service of

unverified objection-only responses. "CCP § 2031.31(c) states that the time limit for bringing a motion to compel further responses runs from the service of a verified response or supplemental verified response. Although not specified in the Discovery Act, the 45-day limit probably also applies where the response is unverified and includes only objections." (Weil & Brown, California Practice Guide: Civil Procedure Before Trial, 8:1492.4 (2025).) The motions as to requests for production are thus untimely.

Meet
and Confer

Defendant made a sufficient effort to meet and confer before filing these motions. Before moving to compel further discovery responses, a party must make a "reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (CCP § 2016.040.) This rule aims "to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order." (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1293.)

On July 10, 2025, Defense counsel sent a meet and confer letter that identified deficiencies in Plaintiffs' responses. (Ziaei Decl., Ex. C.) Defense counsel demanded supplemental responses "no later than July 14, 2025." (Id., at p. 17.)

Though Defense counsel should not have demanded supplemental responses in two business days, this effort was adequate in the circumstances. Plaintiffs never replied to the meet and confer letter and provided no argument in opposition as to why they believed their initial discovery responses would not require significant supplementation. The fact that Plaintiffs have still not provided supplemental responses given the facial deficiency of their responses suggests that additional correspondence would have been futile.

Further
Responses

Defendant
is entitled to further responses to the form interrogatories. A party

propounding interrogatories may move to compel further responses when an answer “is evasive or incomplete,” “[a]n exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate,” or “[a]n objection to an interrogatory is without merit or too general.” (Code Civ. Proc., § 2030.300(a) [interrogatories]; see also Code Civ. Proc § 2031.310(a) [requests for production]).)

To each of the form interrogatories, except request no. 1, Plaintiffs respond:

Responding Party incorporates its General Objections as if fully set forth fully herein. In addition, Responding Party objects to this Request on the following grounds. (1) The Interrogatory seeks information that is neither relevant to the subject matter of this action nor reasonably calculated to lead to the discovery of admissible evidence. (2) The Interrogatory is vague and ambiguous in the context of this case. (3) The Interrogatory is unduly burdensome and oppressive to the extent that it seeks information that is equally available to Propounding Party; that is already in Propounding Party's possession, custody, or control; or that could be derived or ascertained by Propounding Party from public sources.

These objections are evasive. Plaintiffs indiscriminately apply this same boilerplate response to even the simplest of interrogatories such as form interrogatory request no. 2.1. This request asks for Plaintiffs' names and any names used in the past. Generally, after the requesting party moves to compel further responses, the responding party bears the burden of justifying its objections. (Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255.) Plaintiffs do not substantiate their objections. Plaintiffs' objections to Defendant's form interrogatories are overruled.

Sanctions

Defendant moves for \$3,418 in sanctions against Plaintiffs and their counsel of record, based on \$854.50 per motion. “[T]he court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (CCP §

2031.310(h).)

Plaintiffs unsuccessfully opposed the motion to compel further responses to the form interrogatories. They did not act with substantial justification. Sanctions are just under the circumstances. Plaintiffs made numerous meritless objections and made no effort to justify them. A responding party should not object simply for the sake of objecting. The Court exercises its discretion to award Defendant the requested sanctions in full, \$1,709, for the motions relating to the form interrogatories. No sanctions are warranted for the untimely motion to compel further responses to document requests.

Disposition

Defendant Dennis Frank Hemenway's motions to compel Plaintiffs Nicole Ramos and Iris Hernandez to serve further responses to form interrogatories are granted. Plaintiffs are ordered to serve verified responses without objections within 21 days.

Plaintiffs Nicole Ramos and Iris Hernandez and their counsel of record are ordered to pay Defendant Dennis Frank Hemenway \$1,709 in sanctions within 21 days. Plaintiffs and their counsel are jointly and severally liable for the sanctions.

Defendant Dennis Frank Hemenway's motions to compel Plaintiffs Nicole Ramos and Iris Hernandez to serve further responses to requests for production of documents are denied.